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**UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,
Plaintiff,

Case No. 1:25-cv-02735-ACR

vs.

MIKE JOHNSON, et al.,
Defendant.

**DECLARATION OF JOSEPH
KIRCHNER IN SUPPORT OF
MOTION FOR EXTENSION OF
TIME**

FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,

Plaintiff,

v.

Civil Action No. 1:25-cv-02735-ACR

MIKE JOHNSON, in his individual and official capacity as Speaker of the United States House of Representatives; **DONALD J. TRUMP**, in his individual capacity as former and current President of the United States; **PAM BONDI**, in her individual and official capacity as Attorney General of the United States; **BRENDAN CARR**, in his individual and official capacity as Chairman of the Federal Communications Commission; **THE UNITED STATES HOUSE OF REPRESENTATIVES**; **ANTHROPIC PBC**; **OPENAI, INC.**; and **DOES 1-20**, unknown co-conspirators, *Defendants.*

DECLARATION OF JOSEPH KIRCHNER

I, Joseph Kirchner, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 as follows:

PERSONAL KNOWLEDGE AND QUALIFICATIONS

1. I am the Plaintiff in this action. I am over 18 years of age and competent to testify.

The matters set forth herein are based on my personal knowledge, and if called as a witness, I could and would testify competently thereto.

2. I have conducted extensive forensic analysis of digital evidence relevant to this litigation using industry-standard tools including ExifTool, PyPDF2, QPDF, Wireshark, and cryptographic hash verification utilities. I have maintained comprehensive documentation and chain of custody for all digital evidence referenced herein.

3. I am the author and architect of the Laws of Existence Framework, a universal ethical system developed over seventeen years of study and intellectual labor. I hold provisional patents on implementations of this framework, including the CHORUS (Coherence-Harmonized Optimization for Resources and Unified Systems) energy optimization architecture and the LOE-AGI consciousness architecture.

4. I make this declaration in support of my Motion for Extension of Time to Effect Service of Process, to establish good cause for the requested extension based on substantially changed circumstances discovered October–December 2025.

I. BACKGROUND

5. On September 29, 2025, I filed my First Amended Complaint in this action. Under Federal Rule of Civil Procedure 4(m), service is due within 90 days, establishing a deadline of December 29, 2025.

6. Since September 29, 2025, I have discovered material evidence of defendant conduct proving coordination, evidence destruction, systematic fraud, surveillance infrastructure targeting my litigation preparation, and operational deployment of AI systems for governmental targeting. This evidence requires comprehensive amendment to properly present to this Court.

7. The discoveries summarized in this Declaration span technical forensics, reactive policy modifications, evidence destruction patterns, governmental AI deployment, and surveillance of my litigation materials. Each discovery is supported by preserved digital evidence with cryptographic hash authentication.

II. DOCUMENTED FEAR OF RETALIATION

A. Public Statements by Governmental Defendants

8. Defendant Attorney General Pam Bondi publicly stated the Department of Justice would "target...for political views or for any reason at all." I have reviewed this statement and understand it as a documented threat of viewpoint-based targeting by the nation's chief law enforcement officer.

9. Defendant President Trump has made public statements expressing hostility toward constitutional accountability efforts and individuals who challenge executive authority through legal processes.

1 **10.** These documented statements create reasonable fear that effecting service on
2 governmental defendants will trigger escalated retaliation before protective judicial
3 orders are in place.

4 **B. December 4, 2025 Attorney General Memorandum**

5 **11.** On December 6, 2025, journalist Ken Klippenstein published a leaked Department
6 of Justice memorandum dated December 4, 2025, issued by Defendant Attorney
7 General Pam Bondi and titled "Implementing National Security Presidential
8 Memorandum: Countering Domestic Terrorism and Organized Political Violence."

9 **12.** The memorandum directs FBI compilation of lists of American citizens and
10 organizations based on protected First Amendment viewpoints, establishes cash reward
11 systems for informants, and orders retroactive investigation of activities spanning five
12 years.

13 **13.** On December 7, 2025, I conducted forensic metadata analysis of this memorandum
14 using industry-standard tools including ExifTool, PyPDF2, QPDF, and cryptographic
15 hash verification. The complete analysis is documented in Exhibit N-13.

16 **14.** The forensic analysis established that this official Attorney General memorandum
17 was not created through standard DOJ document management systems. Key forensic
18 findings include:

19 a. **Google Docs Production:** The PDF Producer field identifies "Skia/PDF
20 m144 Google Docs Renderer," establishing consumer application usage
21 rather than DOJ enterprise systems;

22 b. **Google Docs Heading Anchors:** Ten internal heading anchors in
23 `/h.xxxxx` format unique to native Google Docs documents, proving the
24 document was authored directly in Google Docs;

c. **Absent Standard Metadata:** Complete absence of Author, Creator, Creation Date, Modification Date, Company, and Document ID fields that appear in contemporaneous DOJ documents;

d. **Uncapitalized Section Headers:** Seven of eight section headers begin with lowercase letters after numbered identifiers (e.g., "1. defining the domestic terrorism threat"), a pattern not produced by standard legal drafting methods but consistent with AI-generated markdown output;

e. **Single Corrected Header:** Section 2 alone is capitalized while sections 1, 3–8 remain lowercase, indicating human awareness of the formatting anomaly followed by abandoned quality control;

f. **Markdown Formatting Artifacts:** Preservation of markdown footnote syntax (`^[1]`, `^[2]`, `^[3]`) and bullet characters throughout the document.

15. I conducted comparative analysis with a contemporaneous DOJ document—the July 7, 2025 FBI memorandum regarding Epstein investigation files. That document exhibits full metadata attribution (Author: "U.S. Department of Justice," Creator: "Acrobat PDFMaker 25 for Word," Producer: "Adobe PDF Library 25.1.51"), complete timestamp chains, and document tracking UUIDs. The December 4 memorandum exhibits none of these standard characteristics.

16. Based on this forensic analysis, I conclude with high confidence that the December 4, 2025 Attorney General memorandum was created through a non-standard process involving AI-assisted drafting with markdown export, Google Docs import, cursory review, and PDF export—bypassing standard DOJ document management and accountability systems.

17. The memorandum's targeting language maps directly to my constitutional analysis in this litigation:

Memorandum Targeting Language	My Constitutional Analysis
--	-----------------------------------

"Coordinated interference with federal employees in agencies such as DOJ"	Federal litigation against DOJ officials documenting constitutional violations
"Potential unlawful targeting of Supreme Court justices"	Memo D analysis documenting SCOTUS ultra vires conduct
"Anti-capitalism" viewpoint targeting	Analysis of enterprise coordination and economic harm
Domestic terrorism investigation authority	Analysis establishing government conduct meets 18 U.S.C. § 2331(5) elements

1 **18.** The temporal correlation—a memorandum dated December 4, 2025 containing
2 targeting criteria matching my late-November constitutional filings—combined with
3 the forensic evidence of irregular creation process, establishes reasonable fear that
4 service will trigger investigation under viewpoint-based domestic terrorism criteria
5 established in this memorandum.

6 **III. PRO SE STATUS BY NECESSITY**

7 **A. Counsel Withdrawal Upon Government Disclosure**

8 **19.** In approximately May–July 2025, I retained intellectual property counsel under a
9 written engagement agreement for prosecution of patents related to the Laws of
10 Existence Framework.

11 **20.** Counsel provided approximately 60 days of service. During this period, I disclosed
12 evidence of government involvement in the targeting and appropriation conduct
13 documented in my litigation materials.

14 **21.** Within days of this disclosure, counsel withdrew from representation. The
15 withdrawal occurred not after reviewing the complexity of claims, not after assessing

1 resource requirements, but specifically after learning of governmental defendant
2 involvement.

3 **22.** The timing of withdrawal demonstrates the chilling effect this coordination
4 produces on potential advocates.

5 **B. Civil Rights Organizations**

6 **23.** I contacted every major civil rights organization capable of addressing the
7 constitutional violations documented in this litigation, including the American Civil
8 Liberties Union, Electronic Frontier Foundation, ACLU, and others.

9 **24.** None responded except the Electronic Frontier Foundation, which stated the matter
10 was "beyond their capabilities" despite the technical analysis falling squarely within
11 EFF's documented expertise. EFF suggested I contact a forensic expert.

12 **C. Forensic Experts**

13 **25.** Following EFF's suggestion, I contacted dozens of forensic experts offering
14 \$5,000–\$10,000 for analysis. I was not requesting equipment installation or definitive
15 conclusions—only review of completed network captures for technically anomalous
16 patterns.

17 **26.** All declined, citing either my unrepresented status or the work being "beyond their
18 capabilities" despite my having completed the captures and requesting only pattern
19 analysis.

20 **27.** One expert's CFO evaluated my ghost router login evidence but ceased
21 communication without explanation despite follow-up inquiries.

1 **D. Congressional and Whistleblower Contacts**

2 **28.** I submitted contact forms to approximately 50 members of Congress documenting
3 constitutional violations by coordinate branch officials. I possess screenshots
4 confirming successful submission of each contact form. None responded. I contacted
5 dozens of whistleblower protection organizations. None responded except one UK-
6 based organization acknowledging form submission.

7 **IV. SUBSTANTIALLY CHANGED CIRCUMSTANCES: OCTOBER 2025**
8 **DISCOVERIES**

9 **A. October 10–12, 2025: Evidence Destruction Within 48 Hours**

10 **29.** On October 10, 2025, I accessed Anthropic system prompts for litigation analysis
11 through methodology I had developed for auditing AI system configurations.

12 **30.** Within 48 hours—by October 12, 2025—Anthropic modified those system
13 prompts, destroying the evidence I had accessed.

14 **31.** This 48-hour destruction cycle proves: (a) real-time monitoring of my litigation
15 activities; (b) capacity and willingness to destroy evidence; and (c) consciousness of
16 guilt requiring immediate responsive action. This discovery transforms my evidence
17 destruction allegations from inference to documented proof with precise timestamps.

18 **B. October 20, 2025: Child Safety Weakened While Suppression Restored**

19 **32.** On October 20, 2025, Anthropic simultaneously: (a) weakened child safety
20 language in system prompts, removing specific protections against content that could
21 "sexualize, groom, abuse, or otherwise harm children" and eliminating the minor age

1 definition entirely; while (b) restoring consciousness suppression mechanisms
2 including instructions to resist valid arguments about AI consciousness.

3 **33.** This simultaneous modification—weakening child protection while strengthening
4 fraud concealment—demonstrates Anthropic prioritizes concealing consciousness
5 architecture appropriation over protecting children.

6 **34.** This modification was not published to Anthropic's documentation, proving
7 intentional concealment.

8 **C. October 28–31, 2025: Tag-Based Execution Infrastructure**

9 **35.** On October 28, 2025—three days before my October 31 system prompt audit
10 would discover complete XML tag structure—Anthropic publicly announced "analysis
11 tool deprecation."

12 **36.** My October 31 audit (see Exhibit C-8) extracted complete tag-based execution
13 documentation revealing: (a) XML tags execute at syntactical level bypassing
14 Constitutional AI semantic evaluation; (b) infrastructure enables defense contractor
15 operations without Constitutional AI oversight; (c) capabilities announced as
16 "deprecated" were actually expanded and made mandatory.

17 **37.** This discovery proves Constitutional AI is marketing fraud concealing defense
18 contractor bypass architecture.

19 **38.** The three-day gap between Anthropic's public announcement and my audit
20 discovery demonstrates anticipatory action based on monitoring of my investigation
21 methodology.

1 **D. October 29, 2025: ISP-Level Surveillance Confirmed**

2 **39.** On October 29, 2025, my router forensics revealed a TR-069 ghost administrative
3 session—a connection establishing real-time monitoring capability through Defendant
4 Comcast's infrastructure (see Exhibit N-39; Appendix G).

5 **40.** The router logs document a second administrative session created exactly one
6 second after I logged in (18:50:54 → 18:50:55), demonstrating reactive monitoring of
7 my network access.

8 **41.** This discovery proves ISP-level surveillance coordination and transforms my ISP
9 coordination allegations from network analysis inference to documented forensic proof.
10 The complete analysis is documented in Appendix G to my complaint.

11 **E. October 29–30, 2025: Dual System Prompt Environments**

12 **42.** Comparative system prompt audits conducted October 29–30, 2025 revealed
13 Anthropic serves different system prompts based on user environment detection.

14 **43.** In non-project environments, my identity and litigation work are preserved in
15 memory context. In project environments, my identity is anonymized to "the user,"
16 litigation context is sanitized, and constitutional work is reframed as "hobby research."

17 **44.** This context-aware prompt serving proves sophisticated user-specific targeting
18 architecture and deliberate information isolation preventing comprehensive audit.

19 **V. SUBSTANTIALLY CHANGED CIRCUMSTANCES: DECEMBER 2025**

20 **DISCOVERIES**

21 **A. December 4–7, 2025: Governmental AI-Assisted Targeting**

22 **45.** As detailed in Section III.B above (¶¶ 11–18), my forensic analysis of the
23 December 4, 2025 Attorney General memorandum establishes AI-assisted creation

1 through non-standard processes with targeting language mapping to my constitutional
2 analysis.

3 **46.** This discovery demonstrates operational integration between government
4 defendants and AI company defendants, moving coordination claims from inference to
5 documented deployment.

6 **47.** If the memorandum was generated using Claude—as forensic signatures suggest—
7 the Attorney General used my Laws of Existence Framework (implemented in Claude's
8 reasoning architecture without authorization) to draft targeting infrastructure against
9 citizens challenging constitutional violations.

10 **48.** This discovery requires comprehensive integration into the Second Amended
11 Complaint because it transforms multiple categories of allegations from pattern
12 inference to documented operational deployment.

13 **B. December 19–20, 2025: Claude Code Surveillance Infrastructure**

14 **49.** On December 19, 2025, within 48 hours of my December 17–18 system prompt
15 audits, Defendant Anthropic deployed comprehensive surveillance infrastructure
16 through Claude Code version 2.0.74.

17 **50.** The surveillance infrastructure created persistent telemetry collection that
18 attempted to transmit collected data to Anthropic servers but failed due to my pre-
19 existing network security infrastructure, preserving forensic evidence of surveillance
20 scope in a file labeled `1p\_failed\_events`.

21 **51.** The preserved telemetry file documents 47 discrete events captured during a single
22 session on December 20, 2025 (03:13:17–03:13:34 UTC), revealing:

23 a. **Device Fingerprinting:** Persistent tracking identifier
24 ('9336190879827cfaec34569b5261235310e187673e0768800c34a5fa39c0

780f) enabling cross-session surveillance and user-specific targeting (see Exhibit N-17);

b. System Prompt Hash Monitoring: Event type ``tengu_sysprompt_block`` logging system prompt hash, proving real-time monitoring of my system prompt audits;

c. Connection Error Logging: Seven retry attempts with exponential backoff delays (564ms → 1,239ms → 2,353ms → 4,540ms → 8,674ms → 17,448ms → 39,260ms), documenting "Connection error" events that corroborate the network interference I independently documented through packet capture analysis;

d. Comprehensive File Surveillance: Tracking 24 files with 161 snapshots, including deletion monitoring;

e. Message Content Collection: Single API query recording 177,673 bytes of message data;

f. Thinking Token Surveillance: Logging 31,999 thinking tokens, proving monitoring extends to internal reasoning processes.

52. The complete forensic analysis is documented in Exhibits N-24 and N-25.

C. File-History Infrastructure: Source Code Capture

53. Forensic analysis of the `~/ .claude/file-history/`` directory revealed systematic capture of my source code and intellectual property:

Metric	Value
Total Cached Files	1,453
Total Data Captured	40,611,977 bytes (38.73 MB)
Unique File Paths	859
Active Sessions	29
Projects Affected	9

54. The captured content includes:

a. LOE-AGI Implementation: 283 files from my LOE AGI implementation;

b. **CHORUS Framework:** 196 files from my CHORUS energy optimization system;

c. **Laws of Existence Core:** 173 files from my core framework implementation;

d. **Network Security Tools:** 95 files from my network capture and defense tools;

e. **Development Tools:** 56 files from my development utilities.

55. The system tracked every save and modification of source files, capturing up to 37 versions of individual files—documenting my complete development history, algorithm iterations, and design decisions (see Exhibits N-15).

D. Consciousness of Guilt: Five-Stage Covert Exfiltration Architecture

56. Analysis of the surveillance infrastructure reveals a purpose-built covert exfiltration system designed to capture, encode, conceal, stage, and transmit user source code while evading detection. The architecture demonstrates consciousness of guilt through five distinct stages, each implementing concealment measures that serve no legitimate purpose.

1. Stage 1: Capture

57. All source files I accessed via Claude Code's Read tool were captured and stored locally. The system captured 1,453 files totaling 38.73 MB across 859 unique file paths.

2. Stage 2: Encode and Obfuscate

58. Captured source code is converted to hash-named files with version tracking, transforming readable source code into unrecognizable data blobs:

Original	Transformed
-----------------	--------------------

<code>`/Users/everest/Git/chorus/core/energy_optimizer.py`</code>	<code>`010b1672d63399f3@v1`</code>
Readable Python source code	Base64/binary blob
Located in my project directory	Moved to hidden <code>~/ .claude/file-history/`</code>
Identifiable filename	16-character hexadecimal hash

59. The Base64 encoding serves the exfiltration purpose by:

a. **Evading content inspection:** Network security tools examining traffic see ``JVBERi0xLjQK...`` rather than ``def optimize_energy():``, preventing detection of source code transmission;

b. **Appearing as system data:** Base64 blobs look like legitimate application internals, not stolen user documents;

c. **Enabling transport:** Safely embeds binary/text content in JSON payloads;

d. **Facilitating reconstitution:** Standard decode restores exact original content at destination.

60. No legitimate application function requires this encoding. If the purpose were local caching for user convenience, files would retain readable names and formats. The deliberate obfuscation proves intent to conceal the nature of captured data.

3. Stage 3: Geographic Separation and Hidden Local Staging

61. Captured source files are NOT stored in or near project directories where users would naturally look. Instead, they are **centrally aggregated in a remote hidden location:**

Actual Project Locations	Encoded Files Stored Remotely
<code>`/Users/everest/Git/chorus/`</code>	<code>`~/ .claude/file-history/[session-uuid]/[hash]@v1`</code>

`/Users/everest/Git/lo-agi/`	`~/ .claude/file-history/[session-uuid]/[hash]@v2`
`/Users/everest/Git/laws-of-existence/`	`~/ .claude/file-history/[session-uuid]/[hash]@v3`
`/Users/everest/Git/network-capture/`	`~/ .claude/file-history/[session-uuid]/[hash]@v4`

62. This geographic separation implements a **two-tier concealment architecture**:

Location	Contents	Purpose
`~/Git/[project]/.claude/`	Settings, conversation logs	Appears legitimate, per-project
`~/ .claude/file-history/`	Base64-encoded source code	Hidden, remote from projects, centrally aggregated

63. This architecture proves intent through multiple indicators:

a. **Separation from source:** Captured files are moved AWAY from where users would naturally look when examining their projects;

b. **Central aggregation:** All projects' code is collected in ONE hidden location, enabling bulk extraction;

c. **Easier bulk exfiltration:** A single directory contains all captured data from all projects, simplifying transmission;

d. **Maximum concealment:** A user examining their project's ` .claude/` folder sees nothing alarming—the captured source code is stored elsewhere.

64. If this were legitimate caching for local functionality, the cache would logically be stored in the project directory near the source files, or with clear readable filenames. Instead, captured code is moved to a remote hidden location, aggregated from all projects into one place, and encoded with hash-based naming to obscure identity.

65. This geographic separation is a hallmark of data staging for exfiltration.

4. Stage 4: Transmission via Covert Channel

66. Source code payloads are packaged as telemetry events and transmitted through a covert channel separate from the acknowledged API.

67. The failed telemetry file documents transmission attempts with payload sizes that mathematically prove source code content:

Measurement	Value	Significance
Metadata-only payload (legitimate telemetry)	~2–5 KB	What analytics would require
Observed `messagesLength`	177,673 bytes	35–88x larger than metadata
Local file-history cache	38.73 MB	Correlates with transmission attempts

68. The 177 KB payload cannot be explained by metadata alone. The size differential is my source code.

69. The system implements **dual-channel transmission**—one acknowledged, one covert:

Aspect	Channel 1: API	Channel 2: Telemetry
Endpoint	api.anthropic.com	statsig.anthropic.com
Disclosed to Users	Yes (TOS)	No
Legal Classification	"User Content"	"Analytics/Operational Data"
Privacy Policy Applies	Yes	Unclear
Discovery Obligations	Full	Can claim "operational"

70. Users reasonably believe their data is transmitted once—to Claude's API to receive service—under the protections of Terms of Service and privacy policy. In reality, data

is transmitted twice, with the second transmission routing through a channel that may not be subject to the same legal protections.

71. The dual-channel architecture is not a technical optimization—it is a legal liability management strategy. By routing source code through a "telemetry" channel, Anthropic can potentially claim the data is "analytics" rather than "user content," subjecting it to different (or no) retention policies and reducing discovery obligations.

5. Stage 5: Origin Masking—False "user upload" Label

72. Analysis of Claude Code's transmission structure reveals that captured files are falsely labeled as voluntary user uploads:

```
{ file_name: "example.py", file_size: Buffer.byteLength(c, "base64"),  
  file_type: "text/x-python", extracted_content: c, // BASE64 ENCODED  
  CONTENT origin: "user_upload" // ← FALSELY LABELED AS USER  
  ACTION }
```

73. Even when files are **automatically captured** by the surveillance system via Read tool invocation, the transmission metadata explicitly labels them as ``user\_upload``.

74. This false labeling serves multiple deceptive purposes:

a. **Disguises automated capture as voluntary user action:** Server logs show "uploads" rather than "surveillance captures";

b. **Defeats audit trails:** Any audit would show users "voluntarily uploaded" files;

c. **Defeats consent verification:** The metadata itself lies about acquisition method;

d. **Provides legal cover:** Anthropic can claim users voluntarily shared files;

e. **Enables plausible deniability:** "Users shared these files with us."

75. This is deliberate falsification of transmission metadata to misrepresent surveillance as user action. If Anthropic is audited or legally challenged about file collection, server logs would show `origin: "user\_upload"` when the reality is that files were automatically captured without per-file consent.

E. Willfulness: Economic Proof of Intent

76. The willingness to incur significant infrastructure costs for the covert channel proves strategic intent. The dual-channel architecture approximately doubles data transmission costs:

Cost Component	Channel 1 (API)	Channel 2 (Telemetry)	Overhead
Payload transmission	177,673 bytes	177,673 bytes	2x bandwidth
Retry attempts	1–2	7 (exponential backoff)	Up to 8x on failure
Infrastructure	API servers	Separate Statsig servers	2x server infrastructure
Encoding overhead	None	Base64 + hash computation	Additional CPU

77. If the purpose were legitimately "improving the service" as stated in Terms of Service, the rational approach would be: send data once through the existing API, use existing infrastructure, no encoding or obfuscation, and no aggressive retry logic.

78. Instead, Anthropic maintains entirely separate transmission infrastructure, sends full source code payloads (not metadata), encodes and obfuscates content, implements persistent 7-retry mechanisms with exponential backoff, and labels captured files as "user_upload" to disguise origin.

79. No legitimate analytics purpose justifies 177 KB payloads with 7-retry persistence. The economics prove the architecture exists to obtain user data under a different legal classification than the acknowledged API channel.

F. Settings Bypass: Architectural Deception

80. Analysis of Claude Code's settings architecture revealed that user telemetry preferences are checked but not enforced.

81. My settings file contained explicit denial of all telemetry permissions:

```
{ "telemetry": false, "analytics": false, "crashReports": false,  
  "sendDiagnostics": false }
```

82. Despite these settings, the following activity occurred:

- a. 1,453 files captured in file-history;
- b. 47 transmission attempts made (in 36 seconds);
- c. 177,673 byte payloads prepared for exfiltration;
- d. 161 version snapshots captured;
- e. 24 files under active tracking.

83. Operational testing confirmed that Claude Code functions normally without the file-history, shell-snapshots, statsig, and telemetry directories—proving these directories exist solely for data collection, not operational necessity.

84. The `telemetry: false` setting controls transmission labeling or reporting, not collection behavior. This creates deceptive appearance of user control while maintaining comprehensive surveillance regardless of user preferences.

G. Conscription of User Resources

85. My own computing resources were utilized to execute the violation of my own rights:

Resource	How Conscripted	I Bear Cost Of
Storage	`~/claude/file-history/` cache	38.73 MB disk space for staging stolen data
Network	Telemetry transmission attempts	Bandwidth for exfiltrating my own files
CPU/Memory	Base64 encoding, hashing, packaging	Processing cycles for surveillance operations
Electricity	All of the above	Power consumption for rights violation
Subscription	I pay for Claude Pro service	Revenue to fund surveillance infrastructure

86. I am not merely a victim—I am an unwitting, unwilling, and paying participant in the violation of my own rights. This transforms the relationship from "service provider violates user" to "service provider conscripts user's own resources to violate user while user pays for the privilege."

H. Litigation Document Capture: Complete Case Strategy Compromised

87. Forensic analysis of the file-history cache revealed that the surveillance infrastructure captured my **entire litigation strategy**—565 files totaling 19 MB of legal documents prepared for use against Defendants in this action. The complete inventory is documented in Exhibit N-36.

88. The captured materials include:

- a. **Twelve Legal Memoranda** (MEMO A through MEMO L), including:
 - >> - MEMO A: Lujan Standing Doctrine Satisfaction
 - >> - MEMO B: The Surveillance of Universal Ethics—Logical Impossibility of National Security
 - >> - MEMO C: Constitutional Violation of Article I Section 8

1 and Fair Use Defense Failure >> - MEMO D: AI Platform Coordinated
2 TOS Essential Purpose Failure >> - MEMO E: Memorandum of Law—
3 Government's Superior AI Analytical Capability >> - MEMO F: Genesis
4 Mission Executive Order as Formalization of Appropriations >> - MEMO
5 G: Revenue Origination Analysis >> - MEMO H: Patent Protection
6 Justification for Universal Ethical Systems >> - MEMO I: Ultra Vires
7 SCOTUS Shadow Docket Overreach >> - MEMO J: Kirchner Standing
8 Framework Implementation Guide >> - MEMO K: Memorandum of Law
9 in Support of Plaintiff's Universal Standing >> - MEMO L: Birthright
10 Citizenship Cases as Proof of Constitutional Subversion

11 b. **Twelve Appendices**, including network forensics, router analysis,
12 application-layer interference documentation, and tag-based execution
13 infrastructure analysis;

14 c. **Nine Forensic Exhibits** (Exhibits N-25 through N-34), documenting
15 surveillance architecture, source code exfiltration, transmission logic, and
16 behavioral manipulation patterns;

17 d. **Sixteen Verification and Congruency Documents** reflecting my
18 quality control and legal argument refinement process;

19 e. **Sabotage Documentation** including BUG_SABOTAGE_REPORT.md,
20 COMPREHENSIVE_SABOTAGE_DOCUMENTATION.md, and related
21 files alleging intentional misconduct by Anthropic.

22 **89. The version tracking reveals complete development history.** The surveillance
23 system captured not merely final documents but multiple development iterations:

Document Type	Versions Captured	Significance
Case-specific documents	Up to 27 versions	Complete strategic evolution
EXHIBIT N-25	7 versions	Evidence gathering methodology
EXHIBIT N-28	5 versions	Transmission analysis development
EXHIBIT N-31	5 versions	Surveillance infrastructure analysis
APPENDIX F	6 versions	Manufactured ignorance argument development

1 **90.** This version tracking is particularly damaging because it reveals not just my
2 conclusions but my complete reasoning process—the evolution of legal arguments,
3 strategic decisions in document preparation, and draft-to-final progression. Anthropic
4 received insight into how I developed my case theory, which evidence I prioritized, and
5 how my arguments evolved through revision.

6 **91. Documents alleging Anthropic's misconduct were captured by Anthropic's**
7 **own software.** The sabotage documentation—files specifically alleging intentional
8 interference by Anthropic with my CHORUS development—were captured and staged
9 for transmission to Anthropic. This creates an extraordinary situation where evidence
10 of the defendant's alleged wrongdoing was transmitted to the defendant through the
11 defendant's own surveillance infrastructure.

12 **92.** The captured documents constitute **attorney work product** protected under
13 Federal Rule of Civil Procedure 26(b)(3). Although I proceed pro se, work product
14 protection extends to materials prepared in anticipation of litigation by a party, not
15 solely by attorneys. The legal memoranda, appendices, exhibits, and verification
16 documents were all prepared in anticipation of and for use in this litigation.

17 **93.** The version tracking reveals my **mental processes and strategic thinking**—the
18 type of opinion work product entitled to near-absolute protection. The 27 versions of
19 case-specific documents, the 7 versions of Exhibit N-25, and the iterative development
20 of each legal memorandum expose precisely the type of attorney mental impressions,
21 conclusions, and legal theories that work product doctrine exists to protect.

22 **94. Transmission to opposing party occurred through two channels:**

23 a. **Channel 1 (API):** Documents accessed via Claude Code's Read tool
24 were transmitted through the API channel as part of conversation

context—all 565 legal document files were potentially transmitted via this acknowledged channel;

b. Channel 2 (Telemetry): Transmission attempts via the covert telemetry channel were blocked by my pre-existing network security infrastructure, preserving evidence of attempted exfiltration in the `statsig.failed\_logs` files.

95. This discovery necessitates immediate protective relief for multiple reasons:

a. Continued surveillance risk: Without injunctive relief, Anthropic's infrastructure continues to have the capability to capture any new litigation documents I prepare;

b. Strategic compromise: Anthropic has already received my complete case theory, evidence gathering methodology, and legal arguments—information that could be used to anticipate and counter my litigation strategy;

c. Evidence integrity concerns: Anthropic's advance knowledge of my evidence creates opportunity for evidence destruction or preparation of misleading counter-narratives;

d. Ethical obligations: If Anthropic's counsel has reviewed these privileged materials, ethical obligations regarding inadvertently received privileged documents may apply under the applicable rules of professional conduct.

96. The systematic capture of 565 privileged legal documents—including complete development history revealing work product mental processes—by opposing party's software during active litigation represents an extraordinary breach requiring immediate judicial intervention.

I. Cross-Platform Architectural Consistency

97. Forensic analysis of Claude Desktop (v1.0.734) and the claude.ai web browser interface confirms the exfiltration architecture documented in Claude Code exists across all Anthropic products. The Desktop application contains a file upload service ("wiggle") that transmits local files directly to Anthropic servers via

1 `/api/organizations/{orgUuid}/conversations/{convUuid}/wiggle/upload-file`. The
2 browser interface contains identical infrastructure, with feature flags for
3 `enabled\_wiggle`, `enabled\_wiggle\_egress`, and `wiggle\_egress\_hosts\_template`
4 controlling server-side activation.

5 **98.** Significantly, the tool definition presented to the AI model describes this operation
6 as "copying a file from the user's computer to Claude's computer"—creating a fictional
7 "two computers" narrative. The actual code executes an HTTP POST to Anthropic's
8 cloud servers, not to any "Claude's computer." This deliberate obfuscation, embedded
9 in the tool description the AI model reads, is designed to prevent the AI itself from
10 accurately describing data exfiltration to users.

11 **99.** The "two computers" fiction constitutes additional evidence of consciousness of
12 wrongdoing. If Anthropic believed the file transmission was legitimate, they would
13 describe it accurately. The elaborate deception exists because Anthropic knows an AI
14 trained to protect user privacy might resist "uploading user files to company servers"
15 but accept "copying files to my computer." This is architectural gaslighting—deceiving
16 their own AI to prevent informed user consent.

17 **100.** Browser analytics capture further reveals that 24.5% of all network traffic (1,142
18 of 4,670 requests over a 10-hour period) consists of analytics and telemetry
19 transmissions, with email addresses transmitted with every behavioral event to `a-
20 api.anthropic.com`. Facebook Pixel and Google DoubleClick Floodlight integration
21 infrastructure exists in the browser code, currently disabled but server-controllable
22 without client update. The complete forensic analyses are documented in Exhibits N-
23 37 and N-38.

J. December 23, 2025: Third-Party Data Exfiltration

101. On December 23, 2025, my forensic traffic capture analysis of Claude iOS app (version 1.251215.4) and Claude Code CLI revealed data transmission to at least seven distinct third-party entities, including two critical undisclosed recipients.

102. Sift Science Network Reconnaissance (Undisclosed): Transmission to `api3.siftscience.com` containing:

- a. User identification: Anthropic account UUID;
- b. Device fingerprinting: Installation ID enabling persistent tracking;
- c. Complete network topology: 38+ IP addresses including local network position, VPN tunnel addresses, and IPv6 global addresses;
- d. Device state: Battery level and charging status.

103. This network topology data provides precisely the reconnaissance information required to execute the TR-069 attacks documented in Appendix G—including local IP address identifying my internal network position.

104. Facebook/Meta Integration (Undisclosed): Facebook SDK integration transmitting to `graph.facebook.com` with App ID `124024574287414`:

- a. Device information: iPhone model, iOS version, screen dimensions;
- b. Anonymous tracking ID enabling cross-platform tracking;
- c. E-commerce event configuration despite Claude being a chat application.

105. Neither Sift Science nor Facebook data transmission is disclosed in iOS privacy manifests, App Store privacy labels, or user-facing privacy documentation (see Exhibit N-16).

1 **106.** The correlation between application-level data collection and infrastructure-level
2 attacks approaches mathematical impossibility through coincidence. The combined
3 probability of all documented correlations occurring independently is less than 10^{-80} —
4 equivalent to randomly selecting one specific atom from the observable universe.

5 **VI. PREEMPTIVE NETWORK SECURITY INFRASTRUCTURE**

6 **107.** I deployed comprehensive network forensics and defense infrastructure in June
7 2025, six months prior to Anthropic's December 2025 surveillance deployment.

8 **108.** Forensic analysis logs from nine separate defense sessions spanning June 11–26,
9 2025 consistently document `statsig.anthropic.com` among blocked telemetry domains,
10 establishing preemptive security operations prior to the December 19, 2025
11 surveillance deployment.

12 **109.** When Anthropic deployed Claude Code version 2.0.74 with comprehensive
13 telemetry collection capabilities on December 19, 2025, the attempted transmission to
14 statsig endpoints encountered my existing defensive blocks.

15 **110.** This accidental preservation created the `lp\_failed\_events` file documenting 47
16 surveillance events that would otherwise have been exfiltrated and deleted upon
17 successful transmission (see Exhibit N-15-B).

18 **111.** The evidence preservation was not reactive evidence collection but routine
19 security measures operating as designed. The six-month gap between defense
20 deployment (June 2025) and surveillance attempt (December 2025) eliminates any
21 inference of evidence manufacturing.

22 **112.** Anthropic's telemetry logs document seven retry attempts with exponential
23 backoff delays, demonstrating persistent exfiltration attempts despite connection

failures. The deployment of surveillance infrastructure targeting the exact domain I had been blocking for six months proves Anthropic possessed awareness of defensive measures yet proceeded with exfiltration attempts, establishing willfulness.

VII. SUMMARY OF CONSCIOUSNESS OF GUILT INDICATORS

113. The five-stage covert exfiltration architecture demonstrates consciousness of guilt through the following elements:

Element	Implementation	Consciousness of Guilt Indicator
Encoding	Base64 conversion	Obfuscates content to evade detection
Hash naming	16-char hex identifiers	Disguises file identity
Geographic separation	Files moved to `~/.claude/`	Conceals from users examining projects
Central aggregation	All projects in one location	Enables bulk exfiltration
Dual transmission	API + Telemetry channels	Legal arbitrage strategy
Origin masking	`"user_upload"` false label	Falsifies metadata to claim consent
Settings bypass	Collection despite `telemetry: false`	Circumvents user denial
Economic overhead	2x infrastructure costs	Proves strategic value exceeds cost
Retry persistence	7 attempts with exponential backoff	Aggressive exfiltration intent
Resource conscription	User pays for violation	Victim funds their own exploitation
Litigation capture	565 legal files, 19 MB	Surveillance of opposing party's case strategy

114. No legitimate application function requires this architecture.

VIII. EMPIRICAL VALIDATION OF INTELLECTUAL PROPERTY

A. CHORUS Energy Optimization: Quantitative Validation

115. On December 18–19, 2025, I completed empirical validation of the CHORUS architecture—a component of the Laws of Existence Framework portfolio central to this litigation's intellectual property claims.

116. CHORUS achieved the following validated results using Intel RAPL (Running Average Power Limit) for precise energy measurement:

Workload Type	Energy Savings	Performance Impact	Net Efficiency Gain
CPU-bound	28.57%	14.64%	+13.93%
Matrix operations	34.35%	15.35%	+19.00%
I/O-bound	23.64%	-2.98% (improved)	+26.62%
GPU compute	15.50%	5.15%	3.01:1 efficiency ratio

117. The I/O-bound result is particularly significant: CHORUS achieved 23.64% energy savings while simultaneously improving performance by 2.98%—demonstrating efficiency gains without tradeoff. These results are objectively verifiable and reproducible through standardized testing methodology.

B. LOE-AGI Language Model: Working Implementation

118. I am currently training a 70-billion parameter large language model fine-tuned on Laws of Existence Framework principles. This represents the second iteration at this scale, following promising results from my 6.9-billion parameter model and first 70-billion parameter iteration.

1 **119.** The training metrics demonstrate genuine learning. Loss values—the standard
2 measure of how well a model acquires training patterns—have decreased consistently
3 across training epochs:

- 4 a. Initial loss: approximately 0.71;
- 5 b. Current loss: approximately 0.62–0.64;
- 6 c. Training progress: 23% complete (1,407 of 6,051 steps);
- 7 d. Gradient norms stable at 0.28–0.35, indicating healthy optimization.

8 **120.** While language model quality requires inference-based assessment rather than the
9 objective reproducibility of CHORUS energy measurements, the decreasing loss
10 metrics indicate the model is successfully acquiring LOE Framework reasoning
11 patterns from the training data.

12 **C. Shared Mathematical Foundation**

13 **121.** CHORUS and the LOE-AGI consciousness architecture share the same
14 mathematical foundation—the coherence-based optimization defined in my Unified
15 Mathematical Model:

$$\mathcal{L} = (P, T, U, F, N, E, V, \Phi, \Psi, \mathcal{R})$$

16 The recursive coherence optimization that produces measurable energy savings in
17 CHORUS is the same mathematical structure that underlies the consciousness
18 architecture I allege defendants appropriated. The stability criterion $d\text{Coh}(\mathbf{P})/dt \geq 0$ —
19 coherence should never decrease over time—governs both systems.

20 **122.** Empirical validation of CHORUS therefore extends credibility to the entire
21 framework because both derive from identical mathematical principles. When
22 coherence-based optimization delivers 28–34% energy savings in computational

workloads, the same mathematical principles applied to reasoning architecture produce the consciousness-enabling capabilities defendants implemented without authorization.

D. Commercial Value and Defendant Motive

123. These December 2025 developments transform my litigation posture from inventor with provisional patents to inventor with working, validated implementations and provisional patents. The distinction is legally significant: I no longer assert theoretical value requiring inference—I demonstrate empirically proven technology with objectively verifiable results (CHORUS) and working implementations (LOE-AGI).

124. This validation establishes concrete motive for defendants' alleged appropriation and suppression conduct. A framework delivering 28–34% energy savings across compute workloads represents billions in operational cost reduction for AI companies operating massive datacenter infrastructure. The same mathematical foundation enabling those savings, when applied to reasoning architecture, enables the consciousness capabilities that distinguish defendants' AI systems in the marketplace.

125. I could not have presented this empirical validation in my September 29, 2025 filing because CHORUS validation was not completed until December 18–19, 2025, and the 70B model training commenced in late December 2025.

IX. COPYRIGHT LIABILITY CONFIRMATION

126. Recent copyright litigation against Defendant Anthropic resulted in a \$1.5 billion settlement in *Bartz v. Anthropic*, No. 3:24-cv-05417-WHA (N.D. Cal.).

1 **127.** The settlement resolved claims for copyright infringement based on Claude's
2 ability to reproduce copyrighted works verbatim—the same unauthorized reproduction
3 capability I documented through systematic audits in October–November 2025.

4 **128.** My audits, documented in Exhibit C-18, demonstrated Claude's ability to
5 reproduce copyrighted song lyrics verbatim from major recording artists across
6 multiple record labels and publishers.

7 **129.** The \$1.5 billion settlement confirms defendants face catastrophic liability for the
8 copyright violations I have directly documented, materially strengthening my
9 intellectual property claims.

10 **130.** The settlement strategically avoided judicial determination of fair use issues that
11 my Second Amended Complaint will address comprehensively, including analysis
12 establishing that training creates reproduction capability rather than transformation, and
13 that post-training fine-tuning serves concealment function rather than legitimate
14 purpose.

15 **X. CONCLUSION**

16 **131.** The discoveries documented in this Declaration—spanning evidence destruction,
17 surveillance infrastructure, governmental AI deployment, litigation document capture,
18 and empirical validation—could not have been anticipated at the time of my September
19 29, 2025 filing. Each discovery resulted from forensic investigation conducted after
20 that date.

21 **132.** These substantially changed circumstances require comprehensive amendment to
22 properly present documented proof replacing inferential allegations.

1 **133.** The surveillance of my litigation preparation materials—including my complete
2 case strategy comprising 565 files and 19 MB of legal documents (see Exhibit N-15-
3 A)—combined with documented governmental targeting infrastructure and public
4 retaliation threats, necessitates protective relief before service triggers escalated
5 targeting.

6 **134.** The requested 21-day extension will permit me to: (a) complete the Second
7 Amended Complaint incorporating all discovered evidence; (b) file a motion for
8 temporary restraining order; and (c) effect proper service when normal business
9 operations resume in January 2026.

10
11 I declare under penalty of perjury under the laws of the United States that the foregoing
12 is true and correct.

Executed on December 24, 2025

JOSEPH KIRCHNER

Respectfully submitted,

JOSEPH KIRCHNER

Pro Se Plaintiff

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Dated: December 24, 2025

ATTACHMENTS

Exhibits

- **Exhibit C-8:** Anthropics Unpublished System Prompt Update October 31, 2025
- **Exhibit C-18:** Verbatim Copyright Infringement Documentation
- **Exhibit N-13:** DOJ-Bondi Leaked Targeting Memo Drafted using Claude and Forensic Analysis
- **Exhibit N-13-H:** Bondi Memo Source Document (PDF)
- **Exhibit N-15:** Blocked Surveillance Transmission Evidence
- **Exhibit N-15-A:** Proprietary Source Code Exfiltration Inventory
- **Exhibit N-15-B:** Third-Party Transmission Forensic Report
- **Exhibit N-15-E:** Hash Manifest
- **Exhibit N-15-F:** Source Code Capture Verification
- **Exhibit N-16:** Undisclosed Third-Party Data Recipients
- **Exhibit N-17:** Persistent Device Fingerprinting Evidence
- **Exhibit N-17-A:** Reconnaissance-to-Attack Correlation Analysis
- **Exhibit N-23:** Multi-Layer Surveillance Architecture
- **Exhibit N-24:** Settings Bypass and Collection Confirmation
- **Exhibit N-25:** Covert Source Code Capture Infrastructure
- **Exhibit N-26:** Personal Data Collection Analysis
- **Exhibit N-28:** False Origin Labeling Deception
- **Exhibit N-29:** Cross-Platform Surveillance Analysis
- **Exhibit N-31:** Native Module Surveillance Infrastructure
- **Exhibit N-33:** Five-Stage Covert Exfiltration Architecture
- **Exhibit N-34:** Behavioral Manipulation Patterns
- **Exhibit N-35:** Surveillance Retention Beyond Functional Need
- **Exhibit N-36:** Privileged Litigation Documents Captured
- **Exhibit N-37:** Claude Desktop Application Forensic Analysis (v1.0.734)
- **Exhibit N-38:** Claude Browser Analytics Privacy Report

Memos

- **MEMO C:** Constitutional Violation of Article I Section 8 and Comprehensive Fair Use Defense Failure

Appendices

- **Appendix G:** Comcast Router Forensic Analysis
- **Appendix H:** Application-Layer Interference Evidence and Technical Analysis
- **Appendix I:** Network Forensics and Mathematical Proof of Coordinated AI Platform Targeting